

Raj Kumar Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 15 July 2022 · Writ-C No. 18734 of 2022 · **Writ disposed; liberty to file a Para 6.8 objection; coercive recovery stayed for eight weeks or till the objection is decided, whichever is earlier.**

HEADNOTE

On a writ challenging Tehsildar recovery of an electricity demand of Rs. 9,13,957, the Division Bench, without entering the merits, disposed of the petition by permitting an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005, to be decided after hearing, and stayed coercive action for eight weeks or until disposal of the objection, whichever is earlier.

FACTUAL SUMMARY

Raj Kumar Singh filed a writ in the Allahabad High Court seeking to quash recovery proceedings initiated by the Tehsildar, Tehsil Pahari, District Chitrakoot, on a recovery citation dated 22 July 2021 for Rs. 9,13,957, and a mandamus restraining arrest and harassment pursuant to that citation. Respondents 3 to 5 were the power distribution corporation. Counsel for the corporation stated on instructions that the petitioner could file an objection against the impugned demand, which would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

objection to demand and stay of recovery

HOLDING

Without expressing any opinion on merits, a writ challenging Tehsildar recovery of an electricity demand is disposed of by granting liberty to submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005, within four weeks; if submitted, respondent No. 3 shall decide it in accordance with law within the next four weeks after reasonable opportunity of hearing, and no coercive action shall be taken on the demand for eight weeks or till disposal of the objection, whichever is earlier.

PRINCIPLE TAGS

pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay

The Court directed the petitioner to file a Para 6.8 objection to the recovered demand and required respondent No. 3 to decide it after hearing, staying coercive action in the meantime.

assessment-6.8-alternate-remedy

The writ against Tehsildar recovery of the electricity demand was disposed of without merits, relegating the consumer to the Para 6.8 objection.

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RECOVERED DEMAND

The Court expressly declined to opine on the merits of the petitioner's case.